

SHAHAN TALUKHA, www.indiatodaymagazine.com



THE DEOBAND DAR-UL-ULOOM MADARSA

Sunni Ulema Board, a little-known group in Hyderabad, had slammed Sania Mirza, saying, "The kind of dress she wears on tennis courts leaves nothing to the imagination. She will undoubtedly be a corrupting influence". Just before her wedding to Pakistani cricketer Shoaib Malik last month, another edict declared that "the kind of actions the two are indulging in, like living together and addressing the media together, are 'haraam' in Islam".

Professor Akhtar-ul-Wasey, head of the Islamic Studies Centre, Jamia Millia Islamia, Delhi, says a hue and cry should not be made over a fatwa without understanding the background or *istifta* (query). "A half-baked reaction to any fatwa creates confusion," he says.

Recent fatwas issued against women by Dar-ul-Uloom



It is unIslamic for Muslim women to work with men in government or private jobs, stay in their proximity or talk to them.

Under Shariah (Islamic laws), the family living off the earnings of such a working woman will be declared 'haraam' or sinful.

It is 'haraam' for a woman to cut her hair, unless asked to do so by her husband. But she may colour it in any other hue other than black.

Trousers are forbidden but women may wear kurtas and hijab. Family planning is haraam and unlawful under Shariah.

Women can't contest Panchayat elections unless veiled. Campaigning must be done by their husbands on their behalf.

exercise restraint. They should maintain their dignity. It is advisable for them to wear the veil when they are in the company of male colleagues," Maulavi Maqsood Imran, deputy imam of Bangalore's Jamia Masjid said. "Muslim women are an emancipated lot and they have moved ahead in India. Clerics come from a very different socio-economic class. Society needs people who can march ahead and take our nation ahead," says Khalil Ahmed, former executive director of Shantha Biotech.

In July 2005, the Dar-ul-Uloom had created a sensation when it took up the case of Imrana of Muzaffarnagar who was violated by her father-in-law. Instead of punish-

ing the 'rapist', the victim's marriage was declared void and she was asked to wed her father-in-law. Muslim scholars then started asking muftis to desist from issuing fatwas even on hypothetical questions pointing out that "Allah says you can't invent Shariah".

While the Imrana fatwa was rejected by a majority of schools of Islamic law, it exposed the growing strength of mullah-ism (priesthood). A few months later, a fatwa was issued forbidding Muslim women to contest Panchayat elections, and if they had to, they should campaign from behind a veil. It underlined that a community that accepts a woman's leadership cannot progress. Another fatwa issued by a senior cleric of the

A senior Deoband cleric clarifies that a "fatwa issued by the Dar-ul-Uloom is not in conflict with the law of land while orders of Khap panchayats in India and Jirgas in Afghanistan and parts of Pakistan are implemented by force. A mufti issues a fatwa only if someone comes to him for guidance. Fatwa is not an order but a guidance of principle and even the person seeking guidance has the option to follow it or not."

Whichever way they are interpreted, such fatwas against women in a modern society only brings comparisons with the rule of the Taliban. Already under pressure because of terrorism-related imagery, it is the last thing Indian Muslims need. ■